

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SAYKOU GEORGE,

Plaintiff,

against

CITY OF NEW YORK, P.O. MELISSA VELIZ Shield No.
12807, P.O. JEAN FRANCISCO Shield No. 12654 and P.O.
JOHN DOE #1-5 and P.O. JANE DOE #1-5,

Defendants,
-----X

Index No.:
Date Purchased:

SUMMONS

Plaintiffs designate NEW
YORK County as the place of
trial.

The basis of venue is:
Plaintiff's Residence

Plaintiffs reside at:
NEW YORK COUNTY

County of NEW YORK

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, while service is made by delivery upon you personally within the state, or, within 30 days after completion of service while service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, NY
September 28, 2016

RAWLINS LAW, PLLC.



Gary N. Rawlins, Esq.

Attorney for Plaintiff

SAYKOU GEORGE

300 Cadman Plaza W, 12th Fl.

Brooklyn, NY 11201

Tel: (212) 926-0050

Fax: (347)332-1592

TO:

CITY OF NEW YORK
Zachary Carter
New York City Law Department
100 Church Street
New York, New York 10007

P.O. MELISSA VELIZ Shield No. 12807/Tax Reg. 948713
PSA 6,
2770 Frederick Douglass Blvd
New York, NY 10039

P.O. JEAN FRANCISCO Shield No. 12654/Tax Reg. 950438
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2770 Frederick Douglass Blvd
New York, NY 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
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SAYKOU GEORGE,

VERIFIED COMPLAINT

Plaintiff,

against

CITY OF NEW YORK, P.O. MELISSA VELIZ Shield No.
12807, P.O. JEAN FFRANCISCO Shield No. 12654 and
P.O. JOHN DOE #1-5 and P.O. JANE DOE #1-5,

Defendants.

-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,
respectfully alleges, upon information and belief that:

1. The Plaintiff, **SAYKOU GEORGE**, at all times herein mentioned was and still is a resident of the County of NEW YORK and the State of New York.
2. At all times mentioned herein, Defendants **P.O. MELISSA VELIZ Shield No. 12807, P.O. JEAN FRANCISCO Shield No. 12654 and P.O. JOHN DOE #1-5 and P.O. JANE DOE #1-5** were and still are residents of the County of NEW YORK and the State of New York.
3. At all times herein mentioned Defendant **THE CITY OF NEW YORK ("NYC")**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
4. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff **SAYKOU GEORGE** upon **NYC** in accordance with Section 50-e of the General Municipal Law on September 28, 2015.

5. Within ninety days of (90) of July 1, 2015, a notice of claim in writing was served on behalf of Plaintiff **SAYKOU GEORGE** upon **NYC**, in accordance with Section 50-e of the General Municipal Law.

6. Prior to the commencement of this action, notice of the intention of Plaintiff **SAYKOU GEORGE** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon **NYC**.

7. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.

8. A hearing pursuant to General Municipal Law 50-h was held on January 19, 2016.

9. This action is commenced within one (1) year and ninety (90) days from July 1, 2015, the date of the occurrence.

10. At all relevant times, Defendants **P.O. MELISSA VELIZ Shield No. 12807**, **P.O. JEAN FRANCISCO Shield No. 12654** and **P.O. JOHN DOE #1-5** and **P.O. JANE DOE #1-5** were members of the **NYPD**, and were employees of Defendant **CITY**, and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.

11. The individual Defendants were acting pursuant to the authority conferred upon them by Defendant municipality.

12. At all times herein mentioned, Defendants **NYC**, **P.O. MELISSA VELIZ Shield No. 12807**, **P.O. JEAN FRANCISCO Shield No. 12654** and **P.O. JOHN DOE #1-5** and **P.O.**

JANE DOE #1-5 stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

13. Defendants NYC are vicariously liable for the acts of Defendants **P.O. MELISSA VELIZ Shield No. 12807, P.O. JEAN FRANCISCO Shield No. 12654 and P.O. JOHN DOE #1-5 and P.O. JANE DOE #1-5.**

**AS AND FOR A FIRST 42 U.S.C. §1983 CAUSE OF ACTION AGAINST THE
INDIVIDUAL DEFENDANTS FOR VIOLATION OF PLAINTIFF'S UNITED STATES
CONSTITUTIONAL RIGHTS**

14. Plaintiff **SAYKOU GEORGE** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

15. Plaintiff **SAYKOU GEORGE** sues all Defendants in their capacities.

16. Plaintiff was profiled, illegally searched, wrongfully detained, assaulted, beat about the head and body, and wrongfully and falsely arrested on or about July 1, 2015 at approximately 1:15 pm, at or near the location of 2406 8th Avenue, New York, New York by police officers of the Housing Bureau PSA 6, including but not limited to Police Officer Jean Francisco Shield No. 12654 and Police Officer Melissa Veliz Shield No. 12807 for possessing a legal knife measuring less than 4 inches in length. Plaintiff was brought to the precinct then transferred to central bookings where he was incarcerated for one (1) day. The defendants continue to maliciously prosecute the plaintiff despite video footage depicting the officer's misconduct clear misconduct and violation of Mr. George's civil rights that placed both Mr. George and the public, including the officers at risk.

17. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **SAYKOU GEORGE**. Mr. George claims damages for the injuries set forth above under 42 U.S.C. §1983 against defendants, each individually and jointly, for violation of his constitutional rights under color of law.

42 U.S.C. 1983 CLAIM AGAINST NYC

18. Plaintiff asserts a Monell Claim against the City of New York as prior to July 1, 2015, the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. George's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The respondent's agencies did not require appropriate in-service training or retraining of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their

actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Claimant's right alleged herein. **SAYKOU GEORGE** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the respondents involved individually and jointly, their agents, servants employees and/or licensees in the control, supervision, hiring and training of the officers and employees who were deliberately indifferent to Mr. George's civil rights and rights under his employment contract. for example, in this case, had the office been provided with a pocket ruler, he could have measured the length of the pocket knife and, after determining that it was legal, could have sent Mr. George on his way. Instead, Plaintiff **SAYKOU GEORGE** was wrongfully, unlawfully and unjustifiably searched, assaulted, arrested, deprived of his liberty, imprisoned, and falsely charged, and maliciously prosecuted.

19. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of plaintiff's rights.

AS AND FOR THE THIRD CAUSE OF ACTION
FOR ASSAULT AND BATTERY AS AGAINST ALL DEFENDANTS

20. Plaintiff **SAYKOU GEORGE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

21. Plaintiff **SAYKOU GEORGE** sues all Defendants in their individual capacities.
22. On July 1, 2015, Plaintiff **SAYKOU GEORGE** was wrongfully, unlawfully and unjustifiably and illegally arrested.
23. Defendants each jointly and individually assaulted and battered plaintiff. As a consequence Mr. George was:
- a. was deprived of his freedom;
 - b. was incarcerated and suffered incarceration;
 - c. was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
 - d. was subjected to great physical, mental, and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which he incurred;
 - e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
 - f. was prevented from attending to his necessary affairs in business during the period of his detention;
 - g. was permanently impaired as to his earning ability;
 - h. And continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.
24. Defendants acted knowingly, willfully, wantonly, recklessly, unlawfully, and in unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

25. By reason of the foregoing, Plaintiff **SAYKOU GEORGE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS AGAINST
ALL DEFENDANTS**

26. Plaintiff **SAYKOU GEORGE** repeats and realleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

27. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **SAYKOU GEORGE** by Defendants **P.O. MELISSA VELIZ Shield No. 12807, P.O. JEAN FRANCISCO Shield No. 12654 and P.O. JOHN DOE #1-5 and P.O. JANE DOE #1-5**.

28. As a result of the foregoing, Defendants **NYC, P.O. MELISSA VELIZ Shield No. 12807, P.O. JEAN FRANCISCO Shield No. 12654 and P.O. JOHN DOE #1-5 and P.O. JANE DOE #1-5** individually and and/or vicariously by and through their agents servants, and/or employees, displayed a deliberate indifference to Plaintiff **SAYKOU GEORGE'S** rights to be free from unreasonable searches and seizures and excessive use of force.

29. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **NYPD** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well being.

30. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION
AGAINST DEFENDANTS NYC

31. Plaintiff **SAYKOU GEORGE** repeats and re-alleges each and every allegation contained in the paragraph above with full force and effect as if each were more fully set forth herein.

32. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **SAYKOU GEORGE** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY**.

33. Defendants **NYC**, at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as Defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

34. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **NYC** negligently created and caused a situation while it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **SAYKOU GEORGE** of his Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

35. Defendants **NYC** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

36. Defendants **NYC** were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

37. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants **NYC** and their agents, servants and/or employees, Plaintiff **SAYKOU GEORGE** suffered the afore-stated injuries.

38. Prior to July 1, 2015, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of Sakou's rights.

39. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.

40. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or retraining of officers who were known to have engaged in police misconduct.

41. As a result of the above described policies and customs, police officers of the City of New York, including the Defendant officers, believed that their actions would not be properly monitored by supervisory offers and that misconduct would not be investigated or sanctioned, but would be tolerated.

42. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein.

43. By reason of the foregoing, Plaintiff **SAYKOU GEORGE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

44. Plaintiff **SAYKOU GEORGE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

45. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, full body strip searching, failing to investigate, failure to advise to law, rule and regulations known to them, failing to heed Plaintiff **SAYKOU GEORGE** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

46. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **SAYKOU GEORGE** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

47. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **SAYKOU GEORGE** and injury to his name and reputation.

48. Said harm did in fact occur in this case, in that Plaintiff **SAYKOU GEORGE** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff has had to seek support and counseling within the family.

49. By reason of the foregoing, Plaintiff **SAYKOU GEORGE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SEVENTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

50. Plaintiff **SAYKOU GEORGE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

51. Defendants' acts were reckless, willful, wanton, malicious, oppressive, and outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **SAYKOU GEORGE** well being, and were based on a lack of concern and ill-will towards Plaintiff.

52. Plaintiff **SAYKOU GEORGE** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff **SAYKOU GEORGE** demands judgment against the defendants as follows:

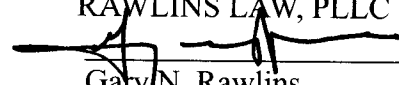
- a. On the First Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- b. On the Second Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all

lower courts which would otherwise have jurisdiction of this matter, jointly and severely;

- c. On the Third Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- d. On the Fourth Cause of Action against **THE CITY OF NEW YORK** all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- e. On the Fifth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;

- f. On the Sixth and Seventh Causes of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severally;
- b. Together with costs, attorney's fees and disbursements of this action.
- c. Such other and further relief as to the Court may seem just and proper.

Dated: Brooklyn, NY
September 28, 2016

RAWLINS LAW, PLLC

Gary N. Rawlins
Attorney for Plaintiff
SAYKOU GEORGE
300 Cadman Plaza W, 12th Fl.
Brooklyn, NY 11201
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SUPREME COURT OF THE STATE OF NEW YORK
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SAYKOU GEORGE,

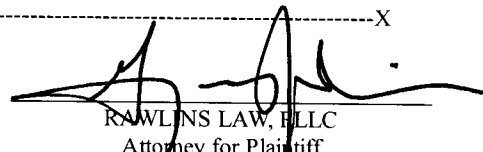
Plaintiff,

SUMMONS AND VERIFIED
COMPLAINT

against

CITY OF NEW YORK, P.O. MELISSA VELIZ Shield No. 12807, P.O. JEAN
FRANCISCO Shield No. 12654 and P.O. JOHN DOE #1-5 and P.O. JANE
DOE #1-5,

Defendants,
-----X


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New York, NY 10039

P.O. JEAN FRANCISCO Shield No. 12654/Tax Reg. 950438
PSA 6,

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK, COUNTY OF NEW , ss:
YORIK

SAYKOU GEORGE , being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, NY
September 28, 2016

X *[Signature]*

Sworn to before me this 28 day
of September, 2016

[Signature]
Notary Public

